

Smt. Sujata W/O Rudrappa Alias Rudresh ... vs Rudrappa Alias Rudresh S/O Basappa ... on 31 August, 2023

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NC: 2023:KHC-D:10126
CP No. 100130 of 2023

IN THE HIGH COURT OF KARNATAKA

DHARWAD BENCH

DATED THIS THE 31ST DAY OF AUGUST, 2023

BEFORE

THE HON'BLE MR JUSTICE C.M. POONACHA
CIVIL PETITION NO. 100130 OF 2023

BETWEEN:

SMT. SUJATA W/O. RUDRAPPA @ RUDRESH HUDED
AGE. 27 YEARS, OCC. HOUSE HOLD,
C/O. MRUTYUNJAYA HANSABHAVI,
NEAR BUS STAND, KARAJAGI,
TQ. AND DIST. HAVERI-581110.

...PETITIONER

(BY SRI. NAVEEN CHATRAD, ADVOCATE)

AND:

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RUDRAPPA @ RUDRESH S/O BASAPPA HUDED

AGED ABOUT 30 YEARS, OCC. COOLIE,

R/O. MULAMUTAL,
TQ. AND DIST. DHRWAD-580010.

...RESPONDENT

(NOTICE TO RESPONDENT IS SERVED)

THIS CIVIL PETITION IS FILED U/SEC.24 OF CPC, 1908,
PRAYING TO ALLOW THIS PETITION AND TRANSFER THE CASE IN
M.C.NO.193/2023 PENDING ON THE FILE OF THE FAMILY COURT,
DHARWAD TO THE PRINCIPAL FAMILY COURT, AT HAVERI, IN THE
INTEREST OF JUSTICE AND EQUITY.

THIS CIVIL PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

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ORDER

The present petition is filed under Section 24 of Code of Civil Procedure, 1908 (hereinafter referred to as 'CPC') seeking transfer of M.C. No.193/2023 pending on the file of the Family Court, Dharwad to the Prl. Judge, Family Court, Haveri.

2. The necessary facts relevant for consideration of the present petition are that the marriage between the parties was solemnized on 22.06.2018, consequent to which, they lived together in their matrimonial home at the residence of the husband. Due to various reasons, the parties are living separately.

3. The respondent/husband has filed M.C.No.99/2022 before the Family Court, Dharwad under Section 9 of the Hindu Marriage Act, 1955 seeking for restitution of conjugal right. The said petition was allowed on 19.10.2022 and the wife was directed to join the husband to lead the marital life. However, despite the same, the parties are not residing together.

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4. It is further forthcoming that the wife instituted proceedings claiming maintenance from the husband which was allowed vide order dated 22.07.2022 and maintenance amount of 6,000/- has been ordered to be paid by the husband to the wife. The wife subsequently filed Crl.Misc.No.123/2022 under Section 128 of Code of Criminal Procedure, 1973 for enhancement of maintenance which is pending before the Family Court, Haveri. The husband has filed M.C.No.193/2023 under Section 13(1) (ib) of the Hindu Marriage Act, 1955, which is pending before the Family Court, Dharwad.

5. Counsel for the petitioner submits that the petitioner is staying along with her parents at the address mentioned in the cause title and she has no independent source of income. That the distance between the residence of the petitioner and Dharwad is 90 km and it will be very difficult for the petitioner to travel to Dharwad for the purpose of contesting the proceedings initiated by the husband.

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6. I have considered submissions made by the learned counsel for the petitioner and perused the material available on record.

7. It is forthcoming that the respondent/husband is gainfully employed and has an independent source of income whereas the petitioner is dependent on her parents for her livelihood and does not have any independent source of income. That the distance between the place of residence of the petitioner to Dharwad being 90 km, the wife will be put to great hardship if she is required to travel to Dharwad for the purpose of contesting the proceedings initiated by the husband. Although the husband will be put to some hardship, if he is required to travel to Haveri for the purpose of prosecuting the proceedings initiated by him, having regard to the settled proposition of law that the convenience of the wife will have to be given precedence to while deciding cases of transfer of matrimonial proceedings, it is expedient that the relief sought for in the present petition be granted.

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8. In view of the aforementioned, I pass the following:

ORDER

i) The petition is allowed;

ii) M.C.No.193/2023 pending on the file of the Family Court, Dharwad shall stand transferred to the Court of the Prl. Judge, Family Court, Haveri.

iii) The parties shall appear before the transferee Court on 21.09.2023;

iv) The transferee Court, upon transfer, shall proceed further in accordance with law;

v) All contentions of the parties are left open.

(Sd/-) JUDGE Naa